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[redacted]

IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA

FOURTH APPELLATE DISTRICT, DIVISION THREE

[redacted]

Appellant,

v.

[redacted]

Respondent.

APPEAL FROM ORANGE COUNTY SUPERIOR COURT
[redacted]

MOTION TO AUGMENT RECORD ON APPEAL; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF MEGAN S. WILSON; [PROPOSED] ORDER

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TABLE OF CONTENTS

Page

MOTION TO AUGMENT THE RECORD ON APPEAL.....3

MEMORANDUM OF POINTS AND AUTHORITIES 3

DECLARATION OF MEGAN S. WILSON.....9

[PROPOSED] ORDER 13

TABLE OF AUTHORITIES

Page(s)

Cases

Foreman & Clark Corp. v. Fallon
(1971) 3 Cal.3d 875 7

In re A.B.
(2008) 164 Cal.App.4th 832.....7

Lipka v. Lipka
(1963) 60 Cal.2d 472 4

People v. Brooks
(1980) 26 Cal.3d 471 3

Rules of Court

Cal. Rules of Court
rule 8.144(b)(2)(B).....6
rule 8.155(a) 3
rule 8.155(a)(1)(A)-(B).....3

Miscellaneous

9 Witkin, Cal. Procedure (5th ed. 2008) Appeal, § 683.....3

MOTION TO AUGMENT THE RECORD ON APPEAL

Pursuant to California Rules of Court, rule 8.155(a), respondent [redacted] requests that this court augment the record to include: (1) the attached reporters' transcripts of the August 18, 19, and 22, 2016, hearings concerning [redacted] request for a domestic violence restraining order (DVRO); (2) the attached reporters' transcripts of the February 20, 21, and 22, 2018, hearings concerning [redacted] request to move away and [redacted] request to terminate [redacted] DVRO; and (3) eight documents not designated in the clerk's transcript and two documents included in the clerk's transcript that are not legible.

This motion is based on the attached memorandum of points and authorities, the declaration of Megan S. Wilson, the appellant's opening brief, the concurrently filed respondent's brief, and the existing record on appeal in this case.

MEMORANDUM OF POINTS AND AUTHORITIES

The record on appeal may be augmented by motion to include "[a]ny document filed or lodged in the case in superior court" or a "certified transcript . . . of oral proceedings." (Cal. Rules of Court, rule 8.155(a)(1)(A)-(B).) "The function of the augmentation procedure is to supplement an incomplete but existing record [citation], and the rule is to be construed liberally." (*People v. Brooks* (1980) 26 Cal.3d 471, 484; see 9 Witkin, Cal. Procedure (5th ed. 2008) Appeal, § 683, p. 753 ["The power [to augment the record] should be liberally exercised"].)

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[1] We refer to the parties by their first names as is customary in cases involving two parties with the same last name.

The rule allowing augmentation enables the Court of Appeal to determine the issues before it by using the record that was before the trial court below. (See *Lipka v. Lipka* (1963) 60 Cal.2d 472, 480.)

[redacted] appeal challenges the trial court's decision to renew a DVRO against him to protect his ex-wife [redacted] On appeal, [redacted] denies he ever abused [redacted] and that her apprehension of him is genuine, despite repeated findings by the trial court to the contrary. (AOB 11, 14.) Additionally, [redacted] argues: (1) substantial evidence did not support the renewal of the DVRO, (2) the trial court applied the incorrect legal standard when granting the renewal, and (3) the trial court abused its discretion by relying on the prior findings in the case. (AOB 5, 10, 13.) In support of his arguments on appeal, [redacted] selectively designated and cited the evidence in the case, ignoring the many facts supporting the trial court's decision. [redacted] motion to augment the record seeks to fill in the gaps omitted by [redacted] to show that the trial court was well within its discretion to renew the DVRO.

On October 22, 2019, [redacted] filed a notice of appeal and elected to proceed on appeal with a clerk's transcript. (Declaration of Megan S. Wilson ¶ 2.) [redacted] proceeding pro se, sought and was granted three extensions to file her respondent's brief. (Wilson Decl. ¶ 3.) The final extension required [redacted] to file her brief by October 9, 2020. (*Ibid.*) On September 16, 2020, Horvitz & Levy LLP associated into the case as [redacted] pro bono counsel. (Wilson Decl. ¶ 4.) In acknowledgement of the time required to review the record and

draft a respondent's brief, the court granted [redacted] an extension on September 22, 2020, allowing her to file her brief by November 9, 2020. (See *ibid*.)

As part of counsel's review of the issues and record, counsel has identified additional items in the record which [redacted] had not previously identified or cited in his opening brief and which [redacted] while proceeding pro se, did not timely designate. With this motion, [redacted] seeks to augment the reporter's transcript portion of the record to include the August 18, 19, and 22, 2016, reporters' transcripts of hearings on [redacted] request for a domestic violence restraining order (see Wilson Decl., exh. A, pp. 3-94; exh. B, pp. 96-246; exh. C, pp. 248-360) and the February 20, 21, and 22, 2018, reporters' transcripts of the hearings concerning [redacted] request to move away and [redacted] request to terminate the DVRO (see Wilson Decl., exh. D, pp. 362-452; exh. E, pp. 454-634; exh. F, pp. 636-734).

This motion also seeks to augment the record with additional documents not designated by [redacted] in the clerk's transcript: [redacted] request for a temporary restraining order and domestic violence restraining order and accompanying documents filed on July 28, 2016, which was incomplete in the clerk's transcript (see Wilson Decl., exh. G, pp. 737-771); [redacted] declaration in support of his DVRO opposition (see Wilson Decl., exh. H, pp. 773-794); the third, fourth, and fifth amended DVRO (see Wilson Decl., exh. I, pp. 797-808; exh. J, pp. 810-832; exh. O, pp. 1023-1039); [redacted] request for a move-away order (see Wilson Decl., exh. K, pp. 834-895); [redacted] request seeking

termination of the DVRO (see Wilson Decl., exh. L, pp. 898-920); and [redacted] request for a temporary emergency order (see Wilson Decl., exh. M, pp. 922-972). This motion to augment also contains two documents that were included but not legible in the clerk's transcript: the court's ruling on summitted matter and order (see Wilson Decl., exh. N, pp. 974-1021) and [redacted] request to renew the restraining order (see Wilson Decl., exh. P, pp. 1041-1077). (See Cal. Rules of Court, rule 8.144(b)(2)(B) ["The text must be reproduced as legibly as printed matter"].)

Given [redacted] obligation as appellant to provide a complete record and the relevance of these materials to the issues he raises on appeal, these are all hearings and filings that should have been included in his original designation of record. Therefore, good cause exists to grant augmentation because these documents and transcripts are relevant to the questions of whether the trial court applied the correct legal standard and whether the renewal was supported by substantial evidence. (See, e.g., AOB 5.) In particular, these documents help demonstrate, among other things, the underlying orders contain substantial evidence to support the DVRO renewal, the circumstances supporting the original DVRO have not changed, [redacted] remains hostile to [redacted] and [redacted] failed to meet his burden on appeal to adequately present all evidence supporting the trial court's decision. Moreover, the record on appeal does not include transcripts and documents expressly relied on by the trial court in renewing the DVRO. (See 1 CT 79; Wilson Decl. ¶¶ 7-23, exhs. A-P; Wilson Decl. ¶ 14 [for example, this motion includes

an exhibit with a declaration from [redacted] which was not included in clerk's transcript, but which the trial court relied on].) The documents would therefore provide this court with a more complete view of the issues raised by the appeal.

Moreover, there is also good cause for the delay in filing this motion. Counsel has been working diligently to prepare the respondent's brief since association on September 16, 2020. (Wilson Decl. ¶¶ 4-5.) Because [redacted] designated the record prior to counsel's association, counsel was required to first review the record actually designated in a brief period of time. (Wilson Decl. ¶¶ 2, 5.) Counsel then had to order and review all of the additional relevant documents filed in the trial court and additional hearing transcripts not previously designated as part of the record, as well as research and draft the responding brief. (Wilson Decl. ¶ 5.) Only after recently completing this process was counsel able to identify relevant and necessary documents, which were excluded from the clerk's transcript, and hearing transcripts that were not previously submitted to the court. (*Ibid.*) There is thus good cause to file this motion to augment at this time.

Finally, [redacted] will not be prejudiced by augmenting the record at this time to include these documents. (See *In re A.B.* (2008) 164 Cal.App.4th 832, 840 ["Since [respondent] filed its motion to augment on the same date it filed its respondent's brief, [petitioner] had plenty of time to reply and suffered no prejudice"].) It is [redacted] burden to provide a sufficient record to put the challenged rulings in context. (See *Foreman & Clark*

Corp. v. Fallon (1971) 3 Cal.3d 875, 881.) He did not do so. Instead, [redacted] selectively included documents in the record to support his one-sided narrative which fails to take into account that the complete record must be examined in the light most favorable to the judgment. He thus has no basis to complain when the respondent provides a complete record of the trial court proceedings.

For the foregoing reasons, [redacted] respectfully requests that the record on appeal be augmented to include the attached transcripts and the additional relevant documents.

November 9, 2020

HORVITZ & LEVY LLP
JEREMY B. ROSEN
SARAH E. HAMILL
MEGAN S. WILSON
FAMILY VIOLENCE
JENNAFER DORFMAN WAGNER
CORY HERNANDEZ

By: _____
Megan S. Wilson

Attorneys for Respondent
[redacted]

DECLARATION OF MEGAN S. WILSON

1. I am an attorney duly admitted to practice before this court. I am an attorney with Horvitz & Levy LLP, attorneys of record for respondent [redacted] I am one of the attorneys primarily responsible for respondent's appeal. Based on my review of the record and personal knowledge of the facts set forth herein, if I was called as a witness, I could and would competently testify to them.

2. On October 22, 2019, [redacted] filed a notice of appeal and elected to proceed on appeal with a clerk's transcript. He also designated a reporter's transcript that did not include all reported trial court proceedings.

3. On June 11, 2020, [redacted] appearing pro se, sought and was granted an extension to file her respondent's brief. On July 10, 2020, the court granted [redacted] second pro se request for an extension. On August 6, 2020, the court granted [redacted] third pro se request for an extension. The final extension required [redacted] to file her brief by October 9, 2020.

4. Horvitz & Levy became [redacted] pro bono counsel on September 16, 2020. On September 22, 2020, the court granted [redacted] a final extension, allowing her to file her brief by November 9, 2020.

5. Since then, I, along with cocounsel Sarah E. Hamill and Jeremy B. Rosen, had to first review the record actually designated. We then had to order and review all of the additional relevant documents filed in the trial court and additional hearings not previously designated as part of the record, as well

as research and draft the respondent's brief. Only after this process were we able to identify what was excluded from the clerk's transcript and the reporter's transcript.

6. Accompanying this declaration are true and correct copies of the six reporters' transcripts we seek to include in the record which were not included in [redacted] reporter's transcript designation. Attached to this declaration also are true and correct copies of ten forms, motions, declarations, documents, and a prior trial court order, all of which were filed in the trial court in this case and either were not included in the clerk's transcript designation or were illegible in the clerk's transcript that was filed.

7. Exhibit A is the reporter's transcript from the August 18, 2016, hearing on [redacted] July 28, 2016, request for a domestic violence restraining order.

8. Exhibit B is the reporter's transcript from the August 19, 2016, hearing on [redacted] July 28, 2016, request for a domestic violence restraining order.

9. Exhibit C is the reporter's transcript from the August 22, 2016, hearing on [redacted] July 28, 2016, request for a domestic violence restraining order.

10. Exhibit D is the reporter's transcript from the February 20, 2018, hearing on [redacted] June 30, 2017, request to move away and [redacted] November 3, 2017, request for termination.

11. Exhibit E is the reporter's transcript from the February 21, 2018, hearing on [redacted] June 30, 2017, request

to move away and [redacted] November 3, 2017, request for termination.

12. Exhibit F is the reporter's transcript from the February 22, 2018, hearing on [redacted] June 30, 2017, request to move away and [redacted] November 3, 2017, request for termination.

13. Exhibit G is [redacted] request for a temporary restraining order and domestic violence restraining order and accompanying documents filed on July 28, 2016, which was incomplete in the clerk's transcript.

14. Exhibit H is the declaration of [redacted] in support of his domestic violence restraining order opposition filed on August 17, 2016.

15. Exhibit I is the third amended domestic violence restraining order filed on March 13, 2017.

16. Exhibit J is the fourth amended domestic violence restraining order filed on April 17, 2017.

17. Exhibit K is [redacted] request for order modifying custody/visitation/support filed on June 30, 2017.

18. Exhibit L is [redacted] request seeking termination of the domestic violence restraining order filed on November 3, 2017.

19. Exhibit M is [redacted] request for a temporary emergency order filed on December 11, 2017

20. Exhibit N is the court's ruling on submitted matter and order entered on March 5, 2018

22. Exhibit O is the fifth amended domestic violence restraining order filed on April 4, 2018.

23. Exhibit P is [redacted] request to renew the domestic violence restraining order filed on August 9, 2019.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed this 9th day of November, 2020.

Megan S. Wilson

[redacted]

IN THE COURT OF APPEAL
OF THE STATE OF CALIFORNIA
FOURTH APPELLATE DISTRICT, DIVISION THREE

[redacted]

Appellant,

v.

[redacted]

Respondent.

APPEAL FROM ORANGE COUNTY SUPERIOR COURT
[redacted]

[PROPOSED] ORDER

Good cause appearing, the motion to augment the record is granted.

IT IS HEREBY ORDERED that the record on appeal will be augmented to include the documents filed with the motion to augment as Exhibits A-P.

Dated:_____

_____
PRESIDING JUSTICE

PROOF OF SERVICE

[redacted] v. [redacted]

OCSC Case No. [redacted] • COA 4/3 Case No. [redacted]

STATE OF CALIFORNIA, COUNTY OF LOS ANGELES

At the time of service, I was over 18 years of age and not a party to this action. I am employed in the County of Los Angeles, State of California. My business address is 3601 West Olive Avenue, 8th Floor, Burbank, CA 91505-4681.

On November 9, 2020, I served true copies of the following document(s) described as

- **MOTION TO AUGMENT RECORD ON APPEAL; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF MEGAN S. WILSON;[PROPOSED] ORDER;**
- **EXHIBITS IN SUPPORT OF MOTION TO AUGMENT THE RECORD ON APPEAL [VOLUME 1 OF 4, PAGES 1-734]**
- **EXHIBITS IN SUPPORT OF MOTION TO AUGMENT THE RECORD ON APPEAL [VOLUME 2 OF 4, PAGES 735-794]**
- **EXHIBITS IN SUPPORT OF MOTION TO AUGMENT THE RECORD ON APPEAL [VOLUME 3 OF 4, PAGES 795-895]**
- **EXHIBITS IN SUPPORT OF MOTION TO AUGMENT THE RECORD ON APPEAL [VOLUME 4 OF 4, PAGES 896-1077]**

on the interested parties in this action as follows:

SEE ATTACHED SERVICE LIST

BY MAIL: I enclosed the document(s) in a sealed envelope or package addressed to the persons at the addresses listed in the Service List and placed the envelope for collection and mailing, following our ordinary business practices. I am readily familiar with Horvitz & Levy LLP's practice for collecting and processing correspondence for mailing. On the same day that correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service, in a sealed envelope with postage fully prepaid.

BY E-MAIL OR ELECTRONIC TRANSMISSION: Based on a court order or an agreement of the parties to accept service by e-mail or electronic transmission via Court's Electronic Filing System (EFS) operated by ImageSoft TrueFiling (TrueFiling) as indicated on the attached service list:

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on November 9, 2020, at Burbank, California.



Emma Henderson

ICE

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	Via U.S. Mail